

Easement

Version 3.5 released on 7/1/25



PW0121945

CITY COUNCIL USE ONLY

Date Received: _____
Committee Date: _____
1st Agenda Date: _____

Tracking #: _____

Committee: _____

Hearing Date: _____

2nd Agenda Date: _____

CITY CLERK USE ONLY

☐ Scanned

Date: 05.13.2026

☐ Posted

Item #: 2605.01166

All department items requiring Council approval must be submitted through the Mayor's Office.

Primary Details

Board Approval

Other Board Name _____

City Council Approval

☒ Yes ☐ No

Department
Public Works

Contact Name
Scott Byrd

Email
sbyrd@cityoftulsa.org

Phone
918-596-7262

Easement Type
Utility

Owner-Grantor
OLT Sparks Development, Inc.

Bid/Project Number
ES 2022-09

Project Title
Spunky Creek Interceptor Main Stem South Phase 3

Council District
6

Section
24

Township
19

Range
14

Addition
UNPLATTED

Lot

Block

Address
3380 S 193 E AVE

Parcel Number
5B

Additional Information/Tracking Number

Budget

Contract Types

☐ No Payments Involved

☐ Revenue Contracts

☒ Expense Contracts

Funding Source(s)

2531S00031.SewerLines.Sewer.7500N.75003308.541101: \$28.00

TOTAL: \$28.00

Approvals

Department: _____

Legal: _____

Board: _____

Mayor: _____

Other: _____

Date: 04.23.26

Date: 05/05/2026

Date: _____

Date: MAY 13 2026

Date: _____

Policy Statement

Background Information

Project ES 2022-09 - Spunky Creek Interceptor Main Stem South Phase 3, Parcel 5B

The City of Tulsa is planning a sanitary sewer project in the vicinity of 31st St S and 193rd E Ave. The attached Utility Easement is beneficial for the project. This easement is being donated by OLT Sparks Development, Inc.

Payment request is attached to the Tulsa County Clerk for the filing fee (\$28.00).

PDZ: FCB 04.23.26

MSL: JYB 4/23/26

bh

Summation of the Requested Action

Mayoral approval and City Council acceptance.

Other Pertinent Details

Processing Information for City Clerk's Office

Post Execution Processing

☐ Mail vendor copy (add'l signature copies attached)

☒ Must be filed with other governmental entity

☐ Add'l governmental entity approval(s) required

Additional Routing, Processing or Contact Details

Courtney Jones, 918-596-9549

2026-RPZ-0252

UTILITY EASEMENT

KNOW ALL MEN BY THESE PRESENTS:

That the undersigned, **OLT SPARKS DEVELOPMENT, Inc., an Oklahoma for profit business corporation**, (Grantor), the owner of the legal and equitable title to the following real estate situated in Tulsa County, State of Oklahoma, for and in consideration of the sum of One Dollar (\$1.00) from the City of Tulsa, Oklahoma, a municipal corporation (City), and other good and valuable considerations, receipt of which is hereby acknowledged, does hereby grant and convey unto the said City of Tulsa, Oklahoma, a permanent easement through, over, under and across the following described property, situated in said County, to-wit:

See Exhibit "A"

to construct **all public utilities** thereon, through, over, under, and across said property, together with all necessary and convenient appurtenances thereto; and to use and maintain the same and of affording the City, its officers, agents, employees, and/or all persons under contract with it, the right to enter upon said premises and strip of land for the purpose of surveying, excavating for, constructing, operating, repairing, and maintaining of such construction.

The City is hereby given and granted the exclusive possession of said above premises for the purposes aforesaid and Grantor, for itself and administrators, successors and assigns, covenants and agrees that no building, structure, fence, wall or other above ground obstruction will be placed, erected, installed or permitted upon the above described land; and further covenants and agrees that in the event the terms of this paragraph are violated by the Grantor, or any person in privity with it, such violation will be promptly corrected and eliminated immediately upon receipt of notice from City, or City shall have the right to remove or otherwise eliminate such violation, and Grantor, its administrators, successors and assigns, shall promptly pay the actual cost thereof.

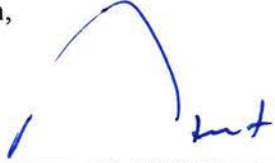
TO HAVE AND TO HOLD Such easement and right-of-way unto the City, its successors or assigns, forever.

Dated this 7th day of April, 2026.

CITY OF TULSA
OFFICE OF CITY CLERK
175 E. 2ND ST-STE 260
TULSA, OKLAHOMA 74103

OLT SPARKS DEVELOPMENT, INC.,
an Oklahoma domestic for profit business
corporation,

By:



Pete Kourtis, President

STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

This instrument was acknowledged before me on (date) this 7th day of April,
2026, by Pete Kourtis as President of OLT Sparks Development, Inc., an Oklahoma domestic for
profit business corporation.

Given under my hand and seal of office the day and year last above written.

My commission expires:

September 23, 2028



APPROVED AS TO FORM:



City Attorney – Assistant

APPROVED AS TO SUBSTANCE:



Director

ACCEPTED BY CITY COUNCIL:

CITY OF TULSA, OKLAHOMA,
a municipal corporation

Date: _____

BY: _____

Name: Karen Gilbert
Title: Council Chair

STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

Before me, a Notary Public in and for said County and State, on the _____ day of _____, 2026, personally appeared **Karen Gilbert**, to me known to be the identical person who approved the within and foregoing instrument as **Chair** of the City Council of the City of Tulsa, Oklahoma, and acknowledged to me that he approved the within and foregoing instrument as his free and voluntary act and deed and as the free and voluntary act and deed of the City of Tulsa, Oklahoma, for the uses and purposes therein set forth.

Notary Public

My commission expires:

APPROVED BY MAYOR:

CITY OF TULSA, OKLAHOMA,
a municipal corporation

Date: _____

BY: _____

Name: Monroe Nichols IV

Title: Mayor

ATTEST:

City Clerk

STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

Before me, a Notary Public in and for said County and State, on the ____ day of _____, 2026, personally appeared **Monroe Nichols IV**, to me known to be the identical person who approved the within and foregoing instrument as **Mayor** of the City of Tulsa, Oklahoma, and acknowledged to me that he approved the within and foregoing instrument as his free and voluntary act and deed and as the free and voluntary act and deed of the City of Tulsa, Oklahoma, for the uses and purposes therein set forth.

Notary Public

My commission expires:

PARCEL NO. _____ 5B

COUNTY _____ TULSA

LEGAL DESCRIPTION

OLT SPARKS DEVELOPMENT
GENERAL
UTILITY EASEMENT

A TRACT OF LAND LOCATED IN THE NORTHEAST QUARTER (NE/4) OF SECTION TWENTY-FOUR (24), TOWNSHIP NINETEEN (19) NORTH, RANGE FOURTEEN (14) EAST OF THE INDIAN BASE AND MERIDIAN, TULSA COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE UNITED STATES GOVERNMENT SURVEY THEREOF, AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCING AT THE SOUTHEAST CORNER OF SAID NE/4; THENCE SOUTH 88°33'43" WEST AND ALONG THE SOUTH LINE OF SAID NE/4, FOR A DISTANCE OF 447.71 FEET TO THE **POINT OF BEGINNING**; THENCE CONTINUING SOUTH 88°33'43" WEST AND ALONG SAID SOUTH LINE, FOR A DISTANCE OF 10.13 FEET; THENCE NORTH 00°32'41" WEST, FOR A DISTANCE OF 367.49 FEET; THENCE NORTH 00°17'08" WEST, FOR A DISTANCE OF 365.53 FEET; THENCE NORTH 46°47'39" WEST, FOR A DISTANCE OF 60.68 FEET; THENCE NORTH 00°05'23" WEST, FOR A DISTANCE OF 548.50 FEET; THENCE NORTH 88°41'55" EAST, FOR A DISTANCE OF 10.00 FEET; THENCE SOUTH 00°05'23" EAST, FOR A DISTANCE OF 544.39 FEET; THENCE SOUTH 46°47'39" EAST, FOR A DISTANCE OF 60.67 FEET; THENCE SOUTH 00°20'59" EAST, FOR A DISTANCE OF 437.59 FEET; THENCE SOUTH 00°31'57" EAST, FOR A DISTANCE OF 299.52 FEET TO THE **POINT OF BEGINNING**.

CONTAINING 13,569.39 SQUARE FEET OR 0.31 ACRES, MORE OR LESS.

BASIS OF BEARINGS: BASED ON OKLAHOMA STATE PLANE COORDINATE SYSTEM, NORTH ZONE (3501) NAD 83 (1993).

REAL PROPERTY CERTIFICATION:

I, NATHANIEL J. REED, CERTIFY THAT THE ATTACHED LEGAL DESCRIPTION CLOSES IN ACCORD WITH EXISTING RECORDS, IS A TRUE REPRESENTATION OF THE REAL PROPERTY AS DESCRIBED, AND MEETS THE MINIMUM TECHNICAL STANDARDS FOR LAND SURVEYING OF THE STATE OF OKLAHOMA.

NATHANIEL J. REED
DATE OF SIGNATURE: 2-18-2024
DATE OF LAST SITE VISIT: 2-6-2024



Handwritten signature in red ink.

EAST 31st STREET SOUTH

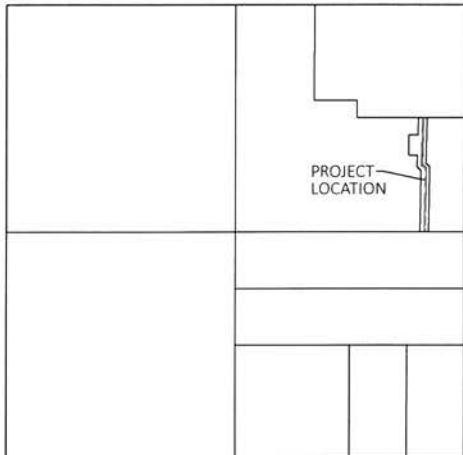
PLAT OF SURVEY

OLT SPARKS DEVELOPMENT
GENERAL
UTILITY EASEMENT

PARCEL NO. 5B

COUNTY TULSA

SOUTH 177th EAST AVENUE

PROJECT
LOCATION

SOUTH 193rd EAST AVENUE

LEGAL DESCRIPTION: A TRACT OF LAND LOCATED
IN THE NE/4, SECTION 24, TOWNSHIP 19 NORTH,
RANGE 14 EAST, TULSA COUNTY, STATE OF
OKLAHOMA

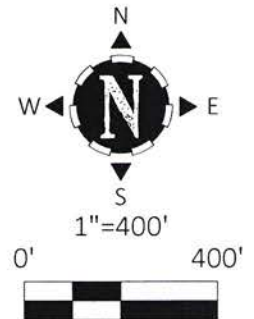
SEC 24 T 19 N R 14 E

EAST 41st STREET SOUTH
TEMPORARY EASEMENT

0.00 SF 0.00 ACRES

GENERAL UTILITY EASEMENT

13,569.39 SF 0.31 ACRES



OLT SPARKS DEVELOPMENT
PART W/2 E/2 W/2
E/2 NW/4 NE/4
& W/2 W/2 E/2 NW/4 NE/4
& W/2 NW/4 NE/4
19100 E. 31ST. S.
QUIT CLAIM DEED
DOC. #2022120833

SA

24.75' STATUTORY R/W

40.25' WATER EASEMENT TO
CITY OF TULSA, BOOK 4969,
PAGE 47

S. 193rd E. AVE.

POC
SE CORNER NE/4
SEC. 24, T.19N, R.14E.
IRON PIN FOUND

LINE	BEARING	DISTANCE
L1	S 88°33'43" W	447.71'
L2	S 88°33'43" W	10.13'
L3	N 00°32'41" W	367.49'
L4	N 00°17'08" W	365.53'
L5	N 46°47'39" W	60.68'
L6	N 00°05'23" W	548.50'
L7	N 88°41'55" E	10.00'
L8	S 00°05'23" E	544.39'
L9	S 46°47'39" E	60.67'
L10	S 00°20'59" E	437.59'
L11	S 00°31'57" E	299.52'

SOUTH LINE NE/4
SEC. 24, T.19N., R.14E.

I, NATHANIEL J. REED, OF THE STATE OF OKLAHOMA,
AND A PROFESSIONAL SURVEYOR, DO HEREBY CERTIFY
THAT THE ABOVE SHOWN PLAT OF SURVEY IS TRUE
AND CORRECT TO THE BEST OF MY KNOWLEDGE AND
MEETS THE MINIMUM TECHNICAL STANDARDS FOR
LAND SURVEYING OF THE STATE OF OKLAHOMA.

NATHANIEL J. REED
P.L.S. 1744
DATE OF SIGNATURE
DATE OF LAST SITE VISIT

LEGEND

- POB POINT OF BEGINNING
POC POINT OF COMMENCEMENT
● 3/8" IRON PIN SET w/CAP (#4916)
○ IRON PIN FOUND

BASIS OF BEARINGS: BASED ON OKLAHOMA STATE PLANE
COORDINATE SYSTEM, NORTH ZONE (3501) NAD 83 (1993).

EXHIBIT "A"

MUNIS
INVOICE COVER SHEET

Vendor Name and Address
Tulsa County Clerk

Department #: 32- Public
Works

Date: 4/17/2026

Special Handling

☐ Wire Transfer

☒ Will Pick up

Email: PWAdmin@cityoftulsa.org

ACCOUNTS PAYABLE USE

Allocation code: _____

MUNIS VENDOR NUMBER

1222-6

MUNIS CONTRACT #

PROJECT STRING (if applicable)

ORG

OBJECT

AMOUNT

2531S00031.SewerLines.Sewer.7500N

75003308

541101

\$28.00

\$0.00

\$0.00

INVOICE NUMBER/DESCRIPTION

TOTAL

\$28.00

Filing Fee

Project ES 2022-09

Parcel 5B

REMARKS

Purchase
Authority

☐

Special Approval

☒

Exception

☐

Contract

Invoice

☐

Original Attached

☐

Prepay (Attach form)

☐

Refund

Affidavit

☐

Affidavit attached (form TUL-373)
For invoices over \$25,000

☒

Not applicable

Prepared by: Bruce Hutton

Munis Workflow approval

Date: 4/17/2026

E. C. De... 4/29/26

MUNIS for ES 2022-09 Parcel 5B
As of 4/17/2026

	Project *	2531S00031	Spunky Creek MnStm Cont 1&2
	Phase *	SewerLines	Sewer lines
	Task *	Sewer	Sewer projects
	Sub-Task *	7500N	TMUA Sewer Capital Projects

Name * Spunky Creek MnStm Cont 1&2

Short Name * SCMainStem

Status Active

Projected date range 07/01/2024 to 06/30/2030

Actual date range to

Project String Balances

GL Accounts

	Project Year	2026
Original Budget		.00
Transfers - In	322,829.99	
Transfers - Out		.00
Revised Budget	322,829.99	
Actual (Memo)		.00
Encumbrances		.00
SOY Encumbrances		.00
Requisitions		.00
Inception to SOY		.00
Available	322,829.99	
Percent Used		0.00

Budget GL account

Fund	SubFund
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Org	Object
75003308	541101